

MATA/86/2020 on 29 January, 2021

Author: S.K.Mishra

Bench: S.K.Mishra

MATA No.86 of 2020

I.A. No.95 of 2020.

06. 29.01.2021

This matter is taken up through Video Conferencing mode.

This is an application under Section 24 in The Hindu Marriage Act, 1955. The appellant being the wife of the sole respondent has prayed for grant of interim maintenance @ Rs.50,000/- (Rupees fifty thousand) per month from the date of filing of the application and also for litigation expenses of Rs.25,000/- (Rupees twenty five thousand).

We have heard Mr. Bibekananda Bhuyan, learned counsel for the sole appellant.

None appears for the respondent when the matter is called. On the last date of listing, i.e., on 22.01.2021 the matter was listed for admission, but the matter could not be heard because the counsel for the respondent did not appear and the I.A. was directed to be listed for order today. The matter had been adjourned with the observation that, if the respondent fails to appear on the next date the matter shall be considered in his absence. It is also found from the record on a previous date i.e., 12.01.2021, the counsel for the respondent did not appear.

We have examined the record, it is apparent from the record that during pendency of the original proceeding, the learned Trial Judge has granted interim maintenance of Rs.15,000/- (Rupees fifteen thousand) per month to the appellant/respondent under section 24 of the Hindu Marriage Act. An amount of Rs.15,00,000/- (Rupees fifteen lakhs only) has been awarded as permanent alimony in favour of the appellant. Out of that, a sum of Rs.7,00,000/- (Rupees seven

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lakhs only) has been awarded in favour of educational expenses of the minor son. Till date permanent alimony has not been paid to the sole appellant.

Admittedly, the appellant was the wife of the respondent, for which dissolution of their marriage, the

respondent had filed the application under Section 13 of the Hindu Marriage Act and the suit was decreed. The learned Judge, Family Court while dissolving the marriage by a decree of divorce, directed the respondent to pay Rs.15,00,000/- (Rupees fifteen lakhs only) as described thereof.

Keeping in view the salary of the respondent, which is stated to be Rs.80,000/- (Rupees eighty thousand only) per month, we are inclined to allow the application for interim maintenance and direct the respondent to pay a sum of Rs.20,000/- (Rupees twenty thousand only) as permanent alimony from the date of filing of this I.A. We are also inclined to grant a sum of Rs.30,000/- (Rupees thousand only) towards litigation expenses.

In the result, the application is allowed. The respondent is directed to pay a sum of Rs.20,000/- (Rupees twenty thousand only) per month to the appellant from the date of filing of the interim application. The arrear dues be paid in five equal installments along with the current dues of each month. The litigation expenses of Rs.30,000/- (Rupees thirty thousand only) be paid within a period of 21 days from the date of filing of order. Failing which appropriate order will be passed.

The I.A. is accordingly disposed of.

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List this MATA after six weeks for final disposal.

As restrictions are continuing due to COVID-19 pandemic, learned counsel for the parties may utilize the soft copy of this order available in the High Court's official website or print out thereof at par with certified copies in the manner prescribed, vide Court's Notice No.4587 dated 25.03.2020.

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S.K.Mishra, J.

..... Savitri Ratho, J.

Prasant //4// //5//